

CHAPTER 20.

An Act to provide in the case of default by a board of guardians for the reconstitution of the board ; and for matters arising out of the default or consequential on the reconstitution.

[15th July 1926.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Proceedings
on default
by board of
guardians.

1.—(1) Where it appears to the Minister of Health (in this Act referred to as “the Minister”) that the board of guardians for any poor law union have ceased, or are acting in such a manner as will render them unable, to discharge all or any of the functions exercisable by the board, the Minister may by order under this Act appoint such person or persons, as he may think fit (whether qualified or not to be guardians for the union), to constitute the board in substitution for the then existing members of the board (who shall on the making of the order vacate their office) for such period, not exceeding twelve months, as may be specified in the order, and the persons so appointed shall be deemed for all purposes to constitute the board.

Until the expiration of the term of office of the persons appointed by the order (in this Act referred to as “the appointed guardians”), no person shall become a member of the board otherwise than by the appointment of the Minister.

Where any such order is made, provision shall be made thereby, or by a subsequent order under this Act, for the holding of an election of members of the board to come into office on the expiration of the term of office of the appointed guardians, and with respect to the term of office of the guardians elected at that election.

(2) The Minister may at any time, and from time to time, by order extend, for a period not exceeding six months, the term of office of the appointed guardians.

An order made under this subsection shall be laid before both Houses of Parliament as soon as may be after it is made, and if either House within twenty-one days after the order has been laid before it presents an address to His Majesty praying that the order may be annulled, His Majesty may by Order in Council annul the order and it shall thenceforth be void, but without prejudice to the validity of anything previously done thereunder, or the making of a fresh order.

(3) An order made under this Act may—

- (a) contain such supplemental and consequential provisions as appear to the Minister to be necessary or expedient for the purpose of giving full effect to the order; and
- (b) be amended, varied or revoked by a subsequent order made under this Act.

(4) There may, out of any moneys in the hands of the appointed guardians for the purpose of the exercise of the powers or the discharge of the duties of the board, be paid to the appointed guardians such remuneration, and to any persons appointed to advise the appointed guardians such reasonable allowance on account of travelling expenses and by way of subsistence, as the Minister may approve.

(5) If before the date on which an order is made under this Act in respect of any board of guardians the clerk or any other officer of the board has, on the directions of the Minister, incurred any liabilities in connection with the relief of the poor in the poor law union, the appointed guardians may discharge those liabilities out of any moneys in their hands as aforesaid.

2.—(1) This Act may be cited as the Boards of Guardians (Default) Act, 1926.

Short title
and appli-
cation.

(2) This Act shall not apply to Northern Ireland.
